

HEADNOTE

- “1. The parties to proceedings may at any time conclude their action by way of settlement, also without seeking a confirmatory Court decision as meant in Rule 365 RoP.*
- 2. Actions are disposed of by way of order as the parties have made a unanimous application under Rule 360 RoP declaring that they concluded their actions by way of settlement and wish to dispose of the actions because they have become devoid of purpose and that there is no longer any need to adjudicate thereon.*
- 3. Reimbursement of Court fees pursuant to Rule 370.9 sub c RoP is not limited to concluding a case by way of settlement within the meaning of Rule 365 RoP.”*

COURT
Central Division in Munich

PATENT
EP3056563

KEYWORDS

Settlement

reimbursement of court fees

PROCEEDINGS
Action for revocation

METHOD OF PRODUCING RETINAL
PIGMENT EPITHELIAL CELL

disposal of action

devoid of purpose

unanimous application

Rule 365 Confirmation by the Court of a settlement

SUMMARY

The Central Division in Munich ruled on an action for revocation. The patent at issue relates to a method of producing retinal pigment epithelial cells. According to the headnotes of the decision, parties may settle their proceedings at any time without requiring a confirmatory court decision. The court may then dispose of the action by order when both parties jointly declare that settlement has been reached. Further, such an order may issue when the parties confirm the action has become devoid of purpose. Additionally, reimbursement of court fees is not limited to settlements concluded under the specific settlement rule. This means that cost reimbursement may apply more broadly depending on the circumstances of case closure.